

STATE OF NEW YORK

6561--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. WEPRIN -- read once and referred to the Committee on Insurance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the insurance law, in relation to including image-guided biopsies under certain insurance coverage for breast cancer screening

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Item (iv) of subparagraph (A) of paragraph 11 of subsection
2 (i) of section 3216 of the insurance law, as amended by chapter 424 of
3 the laws of 2024, is amended to read as follows:

4 (iv) upon the recommendation of a physician, screening and diagnostic
5 imaging, including diagnostic mammograms, breast ultrasounds, image-
6 guided breast biopsies, or magnetic resonance imaging, recommended by
7 nationally recognized clinical practice guidelines for the detection of
8 breast cancer. For the purposes of this item, "nationally recognized
9 clinical practice guidelines" means evidence-based clinical practice
10 guidelines informed by a systematic review of evidence and an assessment
11 of the benefits, and risks of alternative care options intended to opti-
12 mize patient care developed by independent organizations or medical
13 professional societies utilizing a transparent methodology and reporting
14 structure and with a conflict of interest policy.

15 § 2. Item (v) of subparagraph (A) of paragraph 11 of subsection (l) of
16 section 3221 of the insurance law, as amended by chapter 424 of the laws
17 of 2024, is amended to read as follows:

18 (v) upon the recommendation of a physician, screening and diagnostic
19 imaging, including diagnostic mammograms, breast ultrasounds, image-
20 guided breast biopsies, or magnetic resonance imaging, recommended by
21 nationally recognized clinical practice guidelines for the detection of
22 breast cancer. For the purposes of this item, "nationally recognized
23 clinical practice guidelines" means evidence-based clinical practice
24 guidelines informed by a systematic review of evidence and an assessment

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD10190-03-5

1 of the benefits, and risks of alternative care options intended to opti-
2 mize patient care developed by independent organizations or medical
3 professional societies utilizing a transparent methodology and reporting
4 structure and with a conflict of interest policy.

5 § 3. Subparagraph (E) of paragraph 1 of subsection (p) of section 4303
6 of the insurance law, as amended by chapter 424 of the laws of 2024, is
7 amended to read as follows:

8 (E) upon the recommendation of a physician, screening and diagnostic
9 imaging, including diagnostic mammograms, breast ultrasounds, image-
10 guided breast biopsies, or magnetic resonance imaging, recommended by
11 nationally recognized clinical practice guidelines for the detection of
12 breast cancer. For the purposes of this subparagraph, "nationally recog-
13 nized clinical practice guidelines" means evidence-based clinical prac-
14 tice guidelines informed by a systematic review of evidence and an
15 assessment of the benefits, and risks of alternative care options
16 intended to optimize patient care developed by independent organizations
17 or medical professional societies utilizing a transparent methodology
18 and reporting structure and with a conflict of interest policy; and

19 § 4. This act shall take effect January 1, 2026 and shall apply to all
20 policies and contracts issued, renewed, modified, altered or amended on
21 or after such date; provided, however, that if chapter 424 of the laws
22 of 2024 shall not have taken effect on or before such date then this act
23 shall take effect on the same date and in the same manner as such chap-
24 ter of the laws of 2024 takes effect.